

Bulgaria

Bulgarian Commission on Protection of Competition

The Bulgarian Commission on Protection of Competition (“CPC”) currently does not use any sophisticated computational tools for processing internal or external data. While the Commission is constantly trying to improve its efficiency in various areas, there are still several challenges that the introduction of machine learning systems creates. Therefore the Commission is involved in initiatives and projects on the topic and follows the current trends in order to adopt the most optimal system for its needs.

The Commission has solid expertise with bid rigging cases. Considering the best practices of other NCAs and international organizations, such as the OECD, the CPC has developed its own Guidelines for fighting bid rigging. The new Guidelines have a list of the most common red flags, indicated by many authorities, most of which red flags are applicable to machine learning and automated search engines.

The CPC has also adopted internal Methodology for bid rigging screening based on economic and statistical analysis and currently an ongoing project for an internal document is taking place. The screening methodology is applied during the preliminary investigation. The results of the screening can be used for establishing fluctuations in the competitive process during the tender procedures. The analysis is aimed at comparison of the winning and losing bids in search for relations between them.

The Bulgarian Commission enjoys a wide variety of online and easily available databases, updated both by public and private entities. These sources of information allow the CPC to make fast, up-to-date and reliable enquiries, without the need to send formal requests to different bodies. While the Commission relies mainly for the information extraction from the open-source databases, in many cases the options to filter and/or sort the queried data are rich and powerful enough. This makes the manual processing of information sufficient for the ongoing investigation without the need of a designated computational toolkit.

These databases include registries such as:

- Trade registry with full access to the company profiles and documents, current Articles of association, representation rights, links between the shareholders of separate companies, etc.

- Digital Public Tenders Platform where all public procurement notices are announced, and all corresponding documents are uploaded.
- Food Prices Information Portal – a free online comparison tool for basic food prices, such as fruits, vegetables, bread, milk products, meat, rice, etc.
- Fuel prices tool – a free online comparison tool for the prices between petrol stations.

Finally, the CPC is also seeking to update its forensic toolkit (software and hardware), which is likely to include computational tools as well. The Commission is aware that the purchase of contemporary software products is important for its work, however, it also acknowledges that the technical preparation of its staff is even more vital. For this reason, the CPC is actively enquiring other NCAs for the practices and experience with the toolkits available to them.